

Kizhakeveettill Nimisha vs Panickareveettill Linish on 16 September, 2025

Mat.A No.674/2020 & R.P(FC) No.173/2018

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2025 : KER: 69

IN THE HIGH COURT OF KERALA AT ERNAKULAM
RESET
THE HONOURABLE MR. JUSTICE DEVAN RZDMCHANDRMI
&

THE HONOURABLE MS. JUDGE M.B. SNEHAIAITIA

TUESDAY, THE 16TH DAY OF SEPTEMBER 2025 / 25TH BHADRA,

IN APPEAL, No. 674 of 2020
AGAINST THE ORDER IN OP No.841 of 2014 of EAMII, I COURT,
KABQRM

APPEAL, IN THE PETITION FOR:

KIZHAKREVEETTILL NIMISHA
AGED 26 YEARS
D/O. RAGHAVA:VAN, PADAYORCHAL, PADAYOTCHAL ROAD,
KANNUR DISTRICT-670 307.
BY A/S.
SHRI . M . SASINDRAN
SHRI . SATHRESHIAN ALAKKADAN

RESPONDENT/RESPONDENT:

EENICKAREVEETTILL LINISH
AGED 37 YEARS
S/O. NIRMALAN, ANNUR, ANNUR ROAD,
KANNUR DISTRICT-670 307.

By ADV SRI.I.V.

AKUMR N]NEODIRI

THIS MATRIMONIAL APPEAL HAVING BEEN FILED UP FOR HEARING
ON 16.09.2025, WITH R.P(FC) No.173/2018, THE COURT ON THE SAME DAY
DELIVERED THE FOLLOWING :

Mat.A No.674/2020 & R.P(FC) No.173/2018

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2025 : KER: 69014

IN THE HIGH COURT OF KERALA AT ERNAKULAM
PRESENT
THE HONOURABLE MS. JUDGE DEVAN RZDMCHANDRAEI
&

TtRE HCINouRABln MRs. JUStlce M.a. sREHmTHA
TUESDAY, THE 16th DAY OF SEPTEMBER 2025 / 25th BMDRA, 1947
REFC NO. 173 OF 2018
AGAINST THE TUD@qNT DATED 23.12.2017 IN MC NO.427 OF 2014
OF FAMILIY COURT, KZINNUR

REvlsloN RETITIOrER/REsperoENI :

PENICKARE VRETTIIi LINESH
AGED 35 YEARS
S/O.NARAYANZEN, ANNUR, KANNUR DISTRICT.

By ADv SRI.I.v. dAyAKUMaR NREOODIRI

REspcneRT/pETITloNER:

RISHAKRE VEETTII. NIMISHZI
AGED 24 YEARS, D/o.RACHAvAN,
pADlrLFTCHAL roST, KANNtrR DlsTRlct -67o 3o7.
BY OwS.
SHRI . M . SASINDRAN
SHRI . ANUROOP . M

THIS REV.PEIIITION(FAMILIY COURT) HAVING CORE UP FOR HEARING
ON 16.09.2025, AI,ONG WITH Mat.appeal.674/2020, IRE COURT ON THE
SARE DAY DEI,IVERED THE roI.LOwlng :
Mat.A No.674/2020 & R.P(FC) No,173/2018 3 2025 : KER: 69014

DEVAN RAMACHANDRAN & M,B.SNEHALATHA, JJ.
I-I-I1111-11-111,I-11-11111111I---,--I---I,
Mat.Appeal No.674/2020 & R.P(FC) No.173/2018
I,~I11-11-11,11-11----11-11--II-11111-1111
Dated, this the 16th day of September, 2025

JUDGMENT

Today, when these matters came up for hearing, the learned counsel appearing for both sides submitted that the entire disputes between the parties have been settled and a joint petition has been filed before this Court.

3. We have examined the joint petition and we notice that it has been signed by the parties and subscribed by their counsel. The terms of the joint petition are lawful and therefore, the settlement arrived at by the parties is accepted.

4. In view of the settlement arrived at by the parties, appellant and respondent have filed a petition under Section 138 of the Hindu Marriage Act, 1955 for dissolution of their marriage by mutual consent, wherein they have stated that they have mutually agreed and decided for dissolution of marriage voluntarily and there is no collusion. Further it is stated that there is no force, fraud or undue influence for obtaining the consent for divorce. Mat.A No.674/2020 & R.P(FC) No.173/2018 4 2025 : KER: 69014

6. Both parties have affirmed that the entire disputes between the parties have been settled in terms of the joint petition filed by the parties.

7. We are convinced that the marriage between the spouses who are Hindus has been irretrievably broken down and there is no possibility of reunion and divorce is the viable option and all the attempts of reunion have been failed. We are also convinced that the parties have voluntarily filed the petition under Section 138 of the Hindu Marriage Act and there is no collusion between the parties and this Court is satisfied that the consent was not obtained through fraud or coercion.

8. We are of the view that this is a fit case to grant divorce by mutual consent on the application filed under Section 138 of the Hindu Marriage Act.

9. In view of the settlement, the judgment and decree in O.P No,841/2014 of Family Court, Kannur stands set aside and the application filed under Section 138 of the Hindu Marriage Act, 1955 for divorce by mutual consent is allowed.

10i The marriage between the appellant and the respondent is dissolved by a decree of divorce by mutual consent under Section Mat.A No.674/2020 & R.P(FC) No.173/2018 5 2025 : KER: 69014 138 of the Hindu Marriage Act, 1955 with effect from today. Mat.A No.674/2020 is disposed of as above.

11. In terms of the settlement arrived at between the parties, R.P(FC) No.173/2018 stands dismissed.

The parties are directed to act implicitly in terms of the joint petition and shall comply all the terms therein, which do form part of the judgment.

Sd/-

DEVAN RAMACHANDRAN JUDGE Sd/-

M.B.SNEHALATHA JUDGE ab Mat.A No.674/2020 & R.P(FC) No.173/2018 6 2025 : KER: 69014
APPENDIX OF RAT.APEAII 674/2020 RETITIONER ANNEXURES juRExma Ai A TRun copy OF
THE COMPLAINT FILED By THE DEPORENT ON 10. 2. 2018 BEFORE THE SUB INSPECTOR OF
POL.ICE , CHERUPUZHA.

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BEFORE THE sue INSPECTOR OF POL.ICE, CHERUPUZHA. , ANNEExtJRE AIII A TRUE COPY OF

TE[E COICIAINT FILED BEFORE THE PAYYANNUR PoI.ICE oN 18.11.2019 BY THE DEPORENT

RESPONDENTS ANNEXURES : NIL IA 2/2025 IN Mat.Appeal 674/2020-Affidavit (Page-1)
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 the responder}t herein had faapse#oife#feeltrt, u, ,,,ov':i. i, `,,, I(` `;iil:,,\`

3. I giv that the maiTfage betr^een deponent and the respondent \,RTt,) ap,le>quRE ap +1,C?€Fi)«
 pe custorp at\#nur ap children. ,\ ` « k `rha ` + Ttry ngrrfege {,,2Si4 onwaps,, i"rmpaunilfty-

5. I say that the well-wishes and 8ctatives of this deponent and the respondent heein haYe arrafiged
 a discusst.on regarding the matrimonial rfSalca.ca-rneleeife IA 2/2025 IN Mat.Appeal
 674/2020-Affidavit (Page-Z) disputE} `anti cor}seeugnfty both `perties have , cewhneed that they
 canaet live together as husband and wife anymare and tlrfere this deponent and the respondent
 herein itaIve mutualty agreed and dedded to get the marriage disofved, try fil\ing applicaticft for
 `diverice,

6. I say that there are nc flffirme claims or issues to be dedded in connecHon with the marriage of
 this deponent and maapondent herein. Both pREes agmaut that there RE no cgrtryant\$ and
 grievance against each fa#ifeas4 < ,fyasrvt`\*\^¢# rmunre!ar,, aniti;i,, thae` wht!tt : be rm
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 the gold ornaments, claim Of morty, mai"tenance, setRE amicably by the parties.

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8. There is` flo ce«uston S#hd the respondent herein in imtiating ffiis `proceeding\$.

9. There is nc Sthar peti#on fotr dfrone pending before this Horfele court or any @thgr searfe
 bchnieen

10. I say that, the issues retafrog to the mariage Of the petitioners have been settled bgieven this
 depdment and ife reapondent herein amicably and in view Of the setifement and also Of consideftng
 the fact that they carmot live \tengether as {fro\$band and wife due relaton5hip anymore, this `their
 martiage dy fit ing application for depchent brmatdely intend dissolu€en @f rmarriag\e.

rf3Qlofo . Gto rnl c"|ffi IA 2/2025 IN Mat.Appeal 674/2020-Affidavit (Page-3) arid in the intierast
 Of S a decree disaelwing ire nespendent beratm rfech termiaed on 11.C&.2@13, fi xpaie petiHon is

filed for the above Fatisf, \ifeat is stated above in perragYapts *`ife 1S,'are "e to my knowledge and un bedieYe Dated enter 2825* "ffiffl Schly affirmed and fi #Ieponent who is pe*sonal!y IA 2/2025 IN Mat.Appeal 674/2020-Affidavit (Page-4) BEfoRE THE HON'BLE HIGH COURT OF KERALA AT ERNAKULAM I.A.NO. of 2025 in Nimisha : Applicant/Appellant Vs. Panickareveettill Linish : Respondent/Respondent 4_F±IDALRE I, panickareveettill Linish, aged 41 rfe#,~fty Annur, Annur Post, Kannur Disthct - 670 307,do solemnly

1. I air the respondent nversant with the facts and circumstahces Of the case. vrim`i{i A,yRTT!
 2. The above appeal has been Sled b ftyinifeapp€fi'#;€;therein,challengingthejudgment dated 23.12.2017 in O.P.841/2014 on the fl!es Of Family Court, Kannur, whch was filed by the !pbellant for dissolution Of marriage. Durlno the Pendeney Of the Appeal all the dispute between this deponent and the appellant herein had been settled out of court.
 3. I Say that the marriage between this deponent and the appellant herein was solemnized on 11.08.2013 as per the custom and ceremonies belongs to the parties at Annur Stee Mahavishnu Temple. |n the Wedlock there are no children.
 4. Trfe marriage relationship between this deponent and the appellant herein were Strained and therefore this deponent and the appellant herein are living separately from May 2014 onwards because of temperamental incompatibility.
- fiGrty&~1,~Qae~ IA 2/2025 IN Mat.Appeal 674/2020-Affidavit (Page-5) i
5. I say that ape wen-withers and relatives ofthis deponent and the appe"ant herein havearrangeda€discussionregardingthematrimonialdisputeandconsequentlyboth i Partieshaveconvincedthattheycannotlivetngetherashusbandandwifeanymoreand thereforethisdeinnentandtheappe|lantherctnhavemutuallyagreedanddecidedto) get the mam.age dissolved, by filing application for divorce.
 6. I say that +ere are no future claims or issues to be decided in connection with the marriage of triis deponent and appellant herein. Both parties agreed that there are no complaints anq grievance against each other and tr]ere will be no other claims with respect to the maintenance, parting of the gold ornaments. All issues relating to the goid ornaments, claim of money, maintenance, micably by the parties.

?, There are ho properties jointly
involved in thls case to adjudicate.
obtained by foree, fraud or undue i

REhanifeq?ndtheappell
•:iS./
divorce in this case

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8. There is a collusion between this
this proceedingsi

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9. There is fro other petition for divorce pending before this Honble court Qr any other coult
bchh{een the parties.

10. I say that} the issues relating to the marriage of the petitioners have been settled between this
debenent and the appe|fant herein amicably and in view of the settlement and also Of conSdering
the fact that tfty cannot live together as husband and wife due .I to strained relationship, anymore,
this deponent benafidely intend to dissolve their ` marriage by filir!g application for dissolution of
marriage.

anGms+.nirh,dun.cfy` •IA 2/2025 IN Mat.Appeal 6 74/2 o 2 o-Affidavit (Page-6) In view a
t h e a b o v e f a c t s a n d c i " m s t a n c e s a n d i n t h e i n t e r e s t O f j u s t i c e , t h i s
honbteCourtmaybepleasedtopassadREedissoivingthemarriageexisGngbetween this deponent artyd
the appellant herein which was solemnfaed on 11.08.2013.

A Separate pen.tion is filed along with this affidavit for the above relief.

What is stated dtove in paragraphs 1 to |o are true to my knowledge and On informatl.On and be+ief
derived from records and I believe the same to be true.

Dated this the loth day of September 2025.

Sol`emnly affirmed and signed before is personally known to I'ne on this the loot day of September
=L` |o,1` JLa2.S' out""ts.ELB.

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J IA 2/2025 IN Mat.Appeal 674/2020-Petition (Page-7) BEFORE THE HON'BLE HIGH COURT OF
KERALA AT ERNAKULAM ii I.A.No. L of 2025 In Mat. Appeal No. 674 of2020 Alrmli /ADDella n(
and Fteszrondent!

1. I(lzhakeveettill Ninlsha, aged 30 years, D/o. Raghavan, Padiyctchal, Padiyotchal Post Karmur
"strict - 670 307.

2. PanlckareveettLI Llnlsh, aged 41 years, S/a. Narayanan, Annur, Anr"r Post, KannLir Dlstrlct -670
307 Vs. FLesi)onderiti Nll petltloners which was solemnizqed 6n.` `fi.'68j`.2b`i-`3.gr ' Dated this
of September 2025.

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